



CHAPTER lxxxvi.

An Act to empower the mayor aldermen and citizens of the city of Coventry to acquire lands and construct street works and a bye-pass road to empower the Corporation to construct an improvement of the river Sherbourne and an extension of their Windmill Road cemetery to make special provision with regard to the cost of constructing the bye-pass road to confer further powers upon the Corporation with regard to the health and good government of the city and for other purposes. [4th June 1930.]

A.D. 1930.

WHEREAS the city of Coventry (hereinafter called "the city") is under the management and local government of the mayor aldermen and citizens of the city (in this Act called "the Corporation"):

And whereas it is expedient to empower the Corporation to acquire the lands referred to in this Act for the several purposes also therein referred to and to construct the street works and bye-pass road described in this Act:

And whereas it is expedient that the special provisions relating to the acquisition of land for and the construction of the said bye-pass road and the charging of frontagers thereon in respect of the cost of the construction thereof should be enacted:

[Price 1s. Net.]

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And whereas in order to prevent flooding it is expedient to enable the Corporation to construct the improvement of the river Sherbourne in the city by this Act authorised :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For and in connection with the purchase of lands and easements -	162,050
For and in connection with the construction of the street works authorised by this Act - -	252,000
For and in connection with the improvement of the river Sherbourne authorised by this Act -	4,600
For and in connection with the laying out of the cemetery extension authorised by this Act - -	6,500

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of or upon which an improvement charge may be imposed by this Act were duly deposited with the clerk of the peace for the county of Warwick and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

Spiritual and Temporal and Commons in this present A.D. 1930.
Parliament assembled and by the authority of the same —
as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Coventry Cor- Short title.
poration Act 1930.

2. This Act is divided into Parts as follows (that Division
is to say):— of Act into
Parts.

Part I.—Preliminary.

Part II.—Lands and works.

Part III.—Special provisions relating to bye-pass
road.

Part IV.—Financial provisions.

Part V.—Miscellaneous provisions.

3. The Lands Clauses Acts (so far as the same are Incorpora-
applicable for the purposes and are not inconsistent with tion of
the provisions of this Act) are hereby incorporated with Lands
this Act with the following exception and modification:— Clauses
Acts.

(a) Section 127 of the Lands Clauses Consolidation
Act 1845 (relating to the sale of superfluous
lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands
Clauses Consolidation Act 1845 shall be under
the corporate seal of the Corporation and shall
be sufficient without the addition of the sureties
mentioned in that section.

4.—(1) In this Act the several words and ex- Interpreta-
pressions to which meanings are assigned by the Acts tion.
wholly or partially incorporated herewith or by the Public
Health Acts 1875 to 1925 have the same respective mean-
ings unless there be something in the subject or context
repugnant to such construction.

(2) In this Act unless the subject or context
otherwise requires—

“The city” means the city of Coventry;

“The Corporation” means the mayor aldermen and
citizens of the city;

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- “ The council ” means the council of the city ;
- “ The town clerk ” means the town clerk of the city and includes any person duly authorised to discharge temporarily the duty of that office ;
- “ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the city ;
- “ The county ” means the administrative county of Warwick ;
- “ The county council ” means the county council of the county ;
- “ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act ;
- “ The Act of 1900 ” “ the Act of 1907 ” “ the Act of 1911 ” “ the Act of 1913 ” “ the Act of 1920 ” “ the Act of 1927 ” and “ the Act of 1928 ” mean respectively the Coventry Corporation Act 1900 the Coventry Corporation Act 1907 the Coventry Corporation Act 1911 the Coventry Corporation Act 1913 the Coventry Corporation Act 1920 the Coventry Corporation Act 1927 and the Coventry Corporation Act 1928 ;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ;
- “ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any

annuity rentcharge rent or other security A.D. 1930.
representing or granted in lieu of consideration
money for the time being existing under any
Act of Parliament public or local passed or
to be passed or under any Provisional Order
confirmed by Act of Parliament passed or to
be passed or under any order or sanction of
any Government department made or given or
to be made or given by authority of any Act
of Parliament passed or to be passed.

PART II.

LANDS AND WORKS.

5.—(1) Subject to the provisions and for the pur- Power to
poses of this Act the Corporation may enter on take take lands.
and use all or any of the lands delineated on the deposited
plans and described in the deposited book of reference
other than the lands referred to in subsection (2) of this
section for the purpose of constructing the works autho-
rised by this Act including the improvement and develop-
ment of frontages or of the lands abutting on or adjacent
or near to any of the works authorised by this Act.

(2) Subject to the provisions of this Act the Cor-
poration may enter on take and use the following lands
delineated on the deposited plans and described in the
deposited book of reference:—

(a) For the extension of the Windmill Road cemetery
of the Corporation—

Lands in the city belonging as to part
thereof containing 11·885 acres to J. U. Jones
F. B. Mason and A. C. Maiden jointly and
bounded as to such part on the north by
Windmill Road aforesaid with a frontage
thereto of 520 feet on the west by the public
footpath leading from Windmill Road to Old
Church Road on the south by land belonging
partly to Messrs. Courtaulds Limited and
partly to the Corporation and on the east
by land belonging to the Honourable Cecil
Saumarez Irby and comprising as to the
remainder of such lands the site of the said
existing public footpath on the west side of

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the land hereinbefore described and containing .256 acre The said lands comprise the enclosures numbered as under on the $\frac{1}{2500}$ scale Ordnance sheets for Warwickshire 1925 edition—

Nos. 143 144 and 569A - Sheet XXI. 4
Nos. 143 and 144 - Sheet XXII. 1
Nos. 143 and 143A - Sheet XVI. 16

- (b) For the preservation of the Old City Wall and City Gate and for the provision of a public walk and pleasure ground—

Lands in the city near to Hales Street containing in the whole 3,760 square yards or thereabouts bounded on the west partly by the Old City Wall and partly by houses in Court No. 7 Chantry Place on the north by Cook Street on the east by the western boundaries of properties on the west side of Jesson Street and on the south by Hales Street;

- (c) In connection with the powers and duties of the Corporation under the Public Health Acts 1875 to 1925 and the Mental Deficiency Acts 1913 to 1927 and for the provision of a hospital for mental defectives—

Lands (on part of which a hospital building is now erected) situate partly in the parish of Exhall in the Foleshill Rural District and partly in the urban district of Bedworth both in the county containing in the whole 60.630 acres or thereabouts and comprising the enclosures numbered as under on the $\frac{1}{2500}$ scale Ordnance sheets for Warwickshire 1925 edition—

In the urban district of Bedworth—

Nos. 258 304 and 305 Sheet XVI.11
Nos. 258 304 305
and 308 - - - Sheet XVI.12

In the parish of Exhall—

Nos. 531 and 460 - Sheet XVI.11
Nos. 451 451A 451B
453 454 456 457A
and 460 - - - Sheet XVI.12

- (d) For exercising the powers and duties of the Corporation under the Housing Acts 1890 to 1924 and the Housing Act 1925— A.D. 1930.
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Lands in the city belonging to the trustees of William Luke Riley containing an area of 15.47 acres or thereabouts situate near to and on the western side of Holbrook Lane comprising part of enclosure No. 15 on the $\frac{1}{2500}$ scale Ordnance sheet No. XXI.4 for Warwickshire 1925 edition and at present on lease to the Corporation for a period of fifteen years from the thirty-first day of March one thousand nine hundred and twenty upon which lands hostels belonging to the Corporation are at present erected;

- (e) For and in connection with the construction of the river improvement work described in and authorised by section 17 of the Act of 1928—

Lands in the city near Palmer Lane comprising (i) land on which a store or warehouse and stables belonging to Arthur Davies and Sons Limited are now erected and (ii) the site of a passage or entry on the north and west sides of the land just described and leading to the Smithfield Inn in Hales Street the whole containing an area of 326 square yards or thereabouts;

- (f) For and in connection with the markets undertaking of the Corporation and particularly with the development of the Barracks Market—

Lands in the city comprising (i) the shop and premises No. 22 Smithford Street together with the entry and yards known as Barrack Place and the buildings on the south-westerly corner of such yard the whole belonging to Robert Joseph Halpin and containing an area of 250 square yards or thereabouts and (ii) land and a shed containing an area of 545 square yards or thereabouts belonging to Emily Haynes and Laura Haynes situate at the rear of Nos. 23 and 24 Smithford Street.

6. The powers of the Corporation for the compulsory purchase of lands under this Act for the purposes of Street Work No. 8 by this Act authorised shall cease Period for compulsory purchase of lands.

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Application
of provisions
of Acts of
1911 1920
1927 and
1928.

7. The following provisions of the Act of 1911 the Act of 1920 the Act of 1927 and the Act of 1928 shall so far as they are applicable for the purpose extend and apply with the necessary modifications to this Act :—

The Act of 1911—

Section 10 (Correction of errors &c. in deposited plans and book of reference);

Section 11 (Owners may be required to sell parts only of certain lands and buildings) Provided that in the application of the said section it shall be read and have effect as if—

(a) the properties described in the schedule to this Act were therein referred to instead of the properties mentioned in the schedule to the Act of 1911; and

(b) the expression “the tribunal” was defined in the Act of 1911 to mean the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act or any Act applied to this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

Section 12 (Provisions as to compensation) Provided that in the application of the said section it shall be read and have effect as if the words “the twentieth day of November nineteen hundred and twenty-nine” were inserted therein instead of the words “the first day of January one thousand nine hundred and eleven”;

Section 13 (Costs of arbitration &c. in certain cases);

Section 15 (Persons under disability may grant easements &c.);

Section 17 (Proceeds of sale of surplus lands).

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The Act of 1920—

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Section 8 (Power to retain sell &c. lands) Provided that in the application of the said section 8 to this Act nothing in that section contained—

(1) shall release the Corporation or any person purchasing or acquiring any lands from them from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed;

(2) shall authorise the Corporation (unless the Minister of Health otherwise direct) to sell lease exchange or otherwise dispose of any lands or interests therein except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the said Minister is necessary or has been obtained;

Section 15 (Power to alter steps pipes areas &c.);

Section 16 (Temporary stoppage of streets).

The Act of 1927—

Section 11 (Power to enter upon property for survey and valuation);

Section 12 (Extinction of private rights of way);

Section 13 (Benefits to be set off against compensation);

Section 15 (Land laid into streets to form part thereof);

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Section 143 (Power to enter premises) Provided that in the application of the said section it shall be read and have effect as if the words "this Act" were inserted therein instead of the words "Part VII (Streets and buildings) and Part VIII (Infectious disease and sanitary provisions) of this Act";

Section 144 (Penalty on occupier refusing execution of Act) Provided that in the application of the said section it shall be read and have effect as if the words "this Act" were inserted therein instead of the words "Part VII (Streets and buildings) or Part VIII (Infectious disease and sanitary provisions) of this Act."

The Act of 1928—

Section 19 (Power to make subsidiary works in connection with works);

Section 25 (Application of road materials excavated in construction of street works and river improvement).

Power to
reinstate
owners of
property.

8. The Corporation may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of this Act or which may be in the neighbourhood of any of the street works authorised by this Act with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

Stopping up
of certain
streets in
city.

9.—(1) So soon as the Corporation shall have purchased the land on each side of Little Butcher Row in the city they may stop up the said street and thereupon all rights of way over such street shall be by virtue of this Act extinguished.

(2) So soon as Street Work No. 1 and Street Work No. 5 by this Act authorised shall have been completed respectively all rights over the public footpath from Highfield Road to Swan Lane and the part of Red Lane between the point of commencement of the said Street Work No. 5 and the present junction of Red Lane with Swan Lane respectively shall be extinguished and the

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land forming the sites thereof respectively shall vest in the Corporation. A.D. 1930.

10. Subject to the provisions of this Act the Corporation may make and (so far as the same are within the city) maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described together with all necessary or proper junctions connections slopes approaches abutments embankments cuttings bridges retaining walls sewers drains works and conveniences connected therewith or incident thereto (namely):—

Power to
construct
works.

In the city—

Street Work No. 1 A new street commencing in Highfield Road and terminating in Swan Lane;

Street Work No. 2 A widening and improvement of Ironmonger Row on the south side and Cross Cheaping on the east side;

Street Work No. 3 A widening and improvement of Well Street on the south side;

Street Work No. 4 A widening and improvement of Hearsall Lane on the east side and Spon End on the south side;

Street Work No. 5 A new street (including the construction of a bridge to carry such street over the Coventry Canal) commencing in Red Lane and terminating in Swan Lane;

Street Work No. 6 A widening and improvement of Church Lane Stoke on the north and east sides;

Street Work No. 7 A widening and improvement of Binley Road on the south side;

River Improvement Work A straightening and improvement of the course of the river Sherbourne commencing near the Charterhouse Mill and terminating near the private bridge leading to the property known as "The Charterhouse".

Partly in the city and partly in the county—

Street Work No. 8 A new bye-pass road commencing in the parish of Allesley in the rural district of Meriden in the county by a

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junction with the main road from Coventry to Birmingham passing through the city and the parishes of Stoneleigh Stivichall and Baginton in the rural district of Warwick and the parish of Willenhall in the rural district of Foleshill in the county and terminating in the last-mentioned parish by a junction with the main road from Coventry to London.

Limits of
deviation.

11. In constructing the works authorised by this Part of this Act the Corporation may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards.

For protec-
tion of
Postmaster-
General.

12. The Corporation shall in constructing the bridge being part of Street Work No. 5 provide for the accommodation of telegraphic lines (as defined by the Telegraph Act 1878) of the Postmaster-General a space ten inches wide and one foot three inches deep under one of the footways of the said bridge. The accommodation shall be provided in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the Postmaster-General. Provided that if within one month of the receipt of the said plans sections and particulars the Postmaster-General shall not have intimated to the Corporation his disapproval thereof or made any requirement with respect thereto he shall be deemed to have approved the same.

For protec-
tion of Eng-
lish Electric
Company
Limited.

13. For the protection of the English Electric Company Limited (in this section called "the company") the following provisions shall unless otherwise agreed between the company and the Corporation apply and have effect (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not enter upon take or use any greater portion of the lands belonging or reputed to belong to the company and numbered on the deposited plans 109 in the city than is required to form the site of the new street (Street Work No. 5 by this Act authorised and the

Corporation shall not in any event enter upon take or use any portion of the said lands other than the portion thereof delineated and coloured red on the plan dated the fifth day of April nineteen hundred and thirty and signed by Victor Watlington on behalf of the company and by Fred Lee on behalf of the Corporation : A.D. 1930.

- (2) The Corporation shall construct and maintain the said new street (Street Work No. 5) in such manner that the said lands numbered 109 as aforesaid or so much thereof as shall not be acquired by the Corporation under the powers of this Act shall directly abut on the said new street or on any embankment of such new street and the company shall be entitled to build on the said lands so that if such street is not on an embankment such buildings shall abut on the said new street and if such street is on an embankment such buildings shall abut on such embankment and the Corporation shall not do any act or thing which will prevent all proper and convenient access being had from any part of the said lands or any buildings thereon to the said new street.

14. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the company and the Corporation apply and have effect in relation to the exercise of the powers of this Part of this Act (that is to say) :— For protection of London Midland and Scottish Railway Company.

- (1) The Corporation shall not under the powers of this Act enter upon take use or interfere with the railways of the company where the bye-pass road (Street Work No. 8) (in this section called "the bye-pass road") by this Act authorised crosses the same or any of the lands works or property now belonging to the company connected therewith and lying between the fences on either side of the said railways (which railways lands works and property are in this section referred to as "the railways") without the consent of the company signified in writing

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but the company shall grant and the Corporation may take an easement or right of constructing and maintaining the bye-pass road over the railways of the company subject to and in accordance with the provisions of this Act :

- (2) The Corporation shall pay to the company for the easement or right which they may acquire under the provisions of this section such consideration as may be agreed upon or in the event of difference may be settled in the manner provided by the Lands Clauses Acts with respect to the settlement of disputed compensation and the provisions of the Lands Clauses Acts shall apply to any proceedings for determining such compensation :
- (3) The Corporation shall construct the bye-pass road so far as the same will be carried over the railways in such lines or situations within the limits of land to be acquired shown upon the deposited plans as shall be reasonably approved by the engineer of the company (hereinafter referred to as "the said engineer") and by such means and in such manner as to leave the running lines undisturbed at all times and so as in no way to obstruct impede or interfere with the free uninterrupted and safe user thereof or the traffic thereof or if any such obstruction or interference shall be caused or take place contrary to this enactment the Corporation shall notwithstanding any approval as aforesaid pay to the company all reasonable costs and expenses to which the company may be put as well as full compensation for any loss sustained by them by reason of any such interruption or interference :
- (4) The Corporation shall unless otherwise agreed by the said engineer carry the bye-pass road over the railway of the company between Coventry and Kenilworth by means of a steel girder bridge in the position and of the dimensions shown on the deposited plans and sections and the said bridge shall have a clear headway over the said railway of not less than fifteen

feet above the existing level of the upper surface of the rails of the said railway at the point of crossing The Corporation shall also unless otherwise agreed by the said engineer carry the bye-pass road over the railway of the company between Coventry and Tile Hill by means of a steel girder bridge in the position shown on the deposited plans and sections but of a width of sixty feet between the abutments of the said bridge and the said bridge shall have a clear headway over the said railway of not less than fifteen feet above the existing level of the upper surface of the rails of the said railway at the point of crossing and the Corporation shall in the case of each of the said bridges at all times thereafter maintain such headway Provided that each of the said bridges shall be completed within two years from the commencement of that bridge and all temporary works in connection therewith shall be removed from the lands of the company within that period Provided also that in constructing the said bridge over the railway of the company between Coventry and Kenilworth the Corporation shall be entitled to make use subject to the reasonable approval of the said engineer of the abutments and supports of the existing bridge which carries Green Lane over the said railway of the company :

- (5) The Corporation shall twenty-eight days before they commence the construction of the parts of the bye-pass road which will pass over the railways furnish to the said engineer proper and sufficient plans sections and specifications of the works proposed to be made by the Corporation over the railways for his approval and shall not commence the same until such plans sections and specifications shall have been approved in writing by the said engineer or in case of any difference arising between him and the Corporation until the same have been settled by arbitration Provided that if the said engineer does not signify his approval or disapproval of the said plans sections and

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specifications within twenty-eight days he shall be deemed to have approved the same :

- (6) If any additions or alterations to the signalling apparatus or the telephone or telegraph wires and works on the railways are in the opinion of the said engineer necessary in consequence of the construction of the bye-pass road the same may be made by the company at the expense of the Corporation and the cost thereof as certified by the said engineer shall be repaid to the company by the Corporation on demand :
- (7) The portion of each of the bridges carrying the bye-pass road over the railways and all works necessary or incidental to the construction thereof or affecting the railways shall be executed under the superintendence (if such be given) and to the reasonable satisfaction of the said engineer and the Corporation shall bear and pay the reasonable expense of the employment by the company of a sufficient number of inspectors or watchmen to be appointed by them for watching the railways with reference to and during the construction renewal or repair of the said bridges and for preventing as far as may be all interference obstruction danger or accident from any of the operations of the Corporation or from the acts or defaults of their contractors or any person or persons in their employ or otherwise :
- (8) The Corporation shall at all times maintain the works by which the bye-pass road shall be carried over the railways and all other works which may in any manner affect the railways in substantial repair and good order and condition to the reasonable satisfaction of the said engineer and if and whenever the Corporation fail so to do the company may make and do in and upon as well the lands and property of the company as of the Corporation such works and things as may be requisite in that behalf and the reasonable cost of so doing shall on demand be repaid to the company by the Corporation Provided that it may

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be agreed between the company and the Corporation in writing that the company instead of the Corporation may maintain the works specified in this subsection and in that event the Corporation shall pay to the company such annual or other sums as may be agreed in respect of the said maintenance:

- (9) The Corporation shall subject to the terms of any agreement made under subsection (8) of this section be responsible for and make good to the company all costs losses damages and expenses which may be occasioned to them or to the railways or to the traffic thereon or otherwise by reason of the construction maintenance of or failure to maintain or repair the bye-pass road over the railways or of any act or omission of the Corporation or of any person or persons in their employ or of their contractors or others in the course of such construction maintenance or repair and the Corporation shall effectually indemnify the company from all claims and demands upon or against them by reason of such construction maintenance or repair or failure as aforesaid or of any such act or omission. Provided that the fact that any work or thing has been done in accordance with any plan section or specification approved by the said engineer or in accordance with any requirements of the said engineer or under the superintendence of the said engineer shall not excuse the Corporation from any liability for damage as aforesaid or affect any claim of the company for injury to the railways or the traffic thereon save so far as the same may arise by reason of any such requirement:
- (10) If at any time hereafter the Corporation shall be desirous of widening to a width of eighty feet between the parapets the bye-pass road where it passes over the railway of the company between Coventry and Tile Hill the company shall grant to the Corporation all proper and reasonable facilities for that purpose and the provisions of this section so far as the same are applicable shall extend to the works to be

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carried out by the Corporation in order to effect the said widening :

- (11) Any difference which shall arise between the Corporation and the company or their respective engineers under this section shall be referred to and determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PART III.

SPECIAL PROVISIONS RELATING TO BYE-PASS ROAD.

Charge on owners of land fronting bye-pass road towards cost of construction.

15.—(1) Towards defraying the expenses of and in connection with the construction of Street Work No. 8 authorised by this Act (in this Part of this Act called “ the bye-pass road ”) the owners of the respective lands comprised within the area shown on the deposited plans as the improvement area shall pay to the Corporation the sum of thirty shillings per foot of frontage of their said lands to the bye-pass road.

(2) When the bye-pass road shall have been completed notice of the sum which any such owner is required by this section to pay shall be served upon him by the Corporation and the land in respect of which such notice is served shall stand and remain charged subject as hereinafter provided with the total sum due in respect thereof under subsection (1) of this section in the manner provided by section 13 of the Private Street Works Act 1892 and the Corporation shall for the recovery of such sum and interest thereon have all the same powers and remedies as are provided by section 12 or section 13 of that Act in respect of sums due in consequence of the putting in force of the powers of that Act.

(3) Notwithstanding anything contained in subsection (1) of this section any sum due from an owner under the said subsection may be varied by agreement between the Corporation and such owner and the Corporation as one of the terms of any such agreement (if they think fit) may themselves defray the whole or any part of the sum so due from such owner.

(4) (a) Within one month after the service of the notice referred to in subsection (2) of this section on any owner of land within the said improvement area such owner may by written notice served on the town clerk object to the sum named in such notice on the ground that such land ought to be excluded from the said improvement area or that part of such land ought to be exempted from the liability to pay the sum of thirty shillings per foot of frontage referred to in subsection (1) of this section by reason of the fact that such land or part thereof will derive no benefit from the construction of the bye-pass road. A.D. 1930.
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(b) For the purposes of this subsection joint tenants or tenants in common may object through one of their number authorised in writing under the hands of the majority of such joint tenants or tenants in common.

(5) If any notice shall be served on the town clerk in accordance with the provisions of subsection (4) of this section the objection contained in such notice shall be referred to one of the panel of official arbitrators appointed under section 1 of the Acquisition of Land (Assessment and Compensation) Act 1919 who shall be empowered to decide whether or not such owner shall be required to pay the sum named in the notice served upon him by the Corporation or any greater or less sum or whether or not the lands or any part thereof in respect of which the counter-notice under subsection (4) of this section has been served on the Corporation shall be excluded from the said improvement area or part of such lands shall be exempted from the liability to pay the sum of thirty shillings per foot of frontage referred to in subsection (1) of this section. The provisions of the said Act as to procedure before official arbitrators and as to costs shall apply to any reference under this subsection.

(6) No sum shall be payable under subsection (1) of this section in respect of land which is agricultural land within the meaning of the Rating and Valuation (Apportionment) Act 1928 or which is occupied by agricultural buildings within the meaning of the same Act. If a part of such land becomes rated a sum shall be payable under subsection (1) of this section only in respect of such part of such land.

[Ch. lxxxvi.] *Coventry Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

(7) No sum shall be payable under subsection (1) of this section in respect of any freight transport hereditament occupied and used wholly or partly for railway transport purposes within the meaning of the Rating and Valuation (Apportionment) Act 1928.

(8) The Corporation may if they think fit postpone the date on which any sum payable under subsection (1) of this section shall become recoverable.

For protection of
Standard
Motor
Company
Limited.

16. The following provisions for the protection of the Standard Motor Company Limited or any other company or association becoming owners of the land belonging to the Standard Motor Company Limited at the date of the passing of this Act and comprised within the area shown on the deposited plans as the improvement area and using the same for the purposes of any trade or business (all of whom are in this section included in the expression "the company") shall notwithstanding anything contained in this Act and unless otherwise agreed in writing between the Corporation and the company apply and have effect in relation to the exercise of the powers of this Act (that is to say):—

(1) No sum shall be payable by the company under subsection (1) of the section of this Act of which the marginal note is "Charge on owners of land fronting bye-pass road towards cost of construction" in respect of any land owned by the company at the date of the passing of this Act notwithstanding that such land may for the time being be a rateable hereditament for the purposes of the Rating and Valuation Act 1925 so long as the said land—

(a) is used by the company solely for the purpose of the provision of sport or recreation for the employees of the company; or

(b) is land upon which the company shall have constructed and shall be maintaining and using a private motor car testing track for the purposes of the company's own business:

Provided nevertheless that if the company shall construct any means of access from the said land or from any part thereof to the bye-pass road the sum specified in subsection (1) of the

said section of this Act shall (subject to the provisions of subsection (5) of that section) be payable by the company in respect of the full width of every such means of access : A.D. 1930.
—

- (2) If the company cease to occupy any part of the land referred to in paragraph (a) or paragraph (b) of subsection (1) of this section or if any portion less than the whole of the said land (being land used for sport or recreation as aforesaid) ceases to be used for those purposes or (being land on which a private motor car testing track has been constructed and is being maintained and used for the purposes of the company's own business) ceases to be used by the company for that purpose the company shall (subject to the provisions of subsection (5) of the said section of this Act) pay to the Corporation the sum payable under subsection (1) of the said section in respect of the portion of land which ceases so to be occupied or used :
- (3) Notwithstanding anything shown on the deposited plans the Corporation shall not enter upon take or use any greater quantity of land owned by the company at the date of the passing of this Act than shall be required for the bye-pass road in the position finally determined as the site thereof and of the dimensions finally determined together with the embankments and other works required for the purpose of the bye-pass road.

17. The Corporation may plant with grass trees or shrubs or treat in other suitable manner any part of the bye-pass road not constructed as a carriageway or footway and shall provide convenient access from the carriageway and footways to any premises abutting on the bye-pass road at the time of its construction and shall execute any works necessary for fencing off the bye-pass road from the adjoining lands or for replacing any fences removed. Power to plant bye-pass road with grass trees &c.

18.—(1) No buildings or structures other than boundary walls or fences or temporary structures erected in connection with building operations shall save as in this section provided be erected nearer to the bye-pass road when constructed than thirty feet from each Building line.

[Ch. lxxxvi.] *Coventry Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — boundary of the bye-pass road or where such road is constructed on an embankment or in a cutting nearer than thirty feet from the foot of each embankment or the top of each side of the cutting.

(2) Notwithstanding anything contained in subsection (1) of this section the Corporation may if they think fit permit—

(a) the projection in front of the building line defined in subsection (1) of this section of any bay window porch or other projecting portion of a building;

(b) in the case of industrial buildings the erection of the building at such distance not being less than ten feet from the boundary of the bye-pass road or the foot of the embankment or the top of the cutting on the side of the bye-pass road on which the buildings are to be erected as the Corporation may specify;

(c) the erection of groups of shops and business premises at such distance not being less than five feet from the boundary of the bye-pass road or the foot of the embankment or the top of the cutting on the side of the bye-pass road on which such shops or premises are to be erected as the Corporation may specify;

(d) the erection in front of the building line defined in subsection (1) of this section of any building where by reason of the levels of the site or of any adjoining land or by reason of any other exceptional circumstances or for purposes of architectural effect such permission is in the opinion of the Corporation advisable;

(e) the erection in front of the building line defined in subsection (1) of this section of a lodge or other building to be used in connection with a dwelling-house provided that the lodge or building shall not exceed two storeys in height and shall not be nearer than ten feet to the boundary of the bye-pass road or the foot of the embankment or the top of the cutting on the side of the bye-pass road on which such lodge or other building is to be erected.

(3) The Corporation shall make compensation to the owner of any land lying between the boundary of

the bye-pass road and the building line defined in subsection (1) of this section for any damage sustained by him by reason of his being unable to build upon such land the amount of such compensation in default of agreement to be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

A.D. 1930

(4) The provisions of this section shall not apply in respect of any building or structure (not being a dwelling-house) to be erected by the London Midland and Scottish Railway Company on land held by the said company for the purposes of their railways and required by the said company primarily for railway purposes.

19. The Corporation may if they think fit make and carry into effect agreements with the owner of any lands shown on the deposited plans with respect to the acquisition of or otherwise dealing with such lands in substitution for the exercise by the Corporation of any of the powers of this Act relating to such lands.

Power to
make agree-
ments with
owners.

20.—(1) Subject to the provisions of this section the county council may (with the consent and in lieu of the Corporation) exercise any of the powers of this Act for and in connection with the making in the lines and according to the levels shown on the deposited plans and sections of the parts of the bye-pass road to be constructed in the county together with all necessary or proper junctions connections slopes approaches abutments embankments cuttings bridges retaining walls sewers drains works and conveniences connected therewith or incident thereto and may (also in lieu of the Corporation) enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as the county council may require for the construction of the said parts of the bye-pass road and such junctions connections slopes approaches abutments embankments cuttings bridges retaining walls sewers drains works and conveniences or for the other purposes of this Act.

As to con-
struction
and main-
tenance of
parts of bye-
pass road in
the county.

(2) The following provisions of the Act of 1911 of the Act of 1920 of the Act of 1927 of the Act of 1928 and of this Act shall (so far as applicable and with any necessary modifications) apply to and for the purposes of the exercise by the county council of the powers of this section as if the county council and the clerk of the

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Act, 1930.

A.D. 1930. county council were referred to therein instead of the Corporation and the town clerk (namely):—

The Act of 1911—

Section 10 (Correction of errors &c. in deposited plans and book of reference);

Section 11 (Owners may be required to sell parts only of certain lands and buildings) Provided that in the application of the said section it shall be read and have effect as if the properties described in the schedule to this Act were therein referred to instead of the properties mentioned in the schedule to the Act of 1911;

Section 12 (Provisions as to compensation) Provided that in the application of the said section it shall be read and have effect as if the words "the twentieth day of November" "nineteen hundred and twenty-nine" were inserted therein instead of the words "the" "first day of January one thousand nine" "hundred and eleven";

Section 13 (Costs of arbitration &c. in certain cases);

Section 15 (Persons under disability may grant easements &c.);

Section 17 (Proceeds of sale of surplus lands).

The Act of 1920—

Section 8 (Power to retain sell &c. lands) Provided that in the application of the said section 8 to this Act nothing in that section contained—

(i) shall release the county council or any person purchasing or acquiring any lands from them from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the county council or any person from or through whom the county council may have derived or may hereafter derive title to the same

but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed; A.D. 1930.

(ii) shall authorise the county council (unless the Minister of Health otherwise direct) to sell lease exchange or otherwise dispose of any lands or interests therein except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the said Minister is necessary or has been obtained;

Section 15 (Power to alter steps pipes areas &c.);

Section 16 (Temporary stoppage of streets).

The Act of 1927—

Section 11 (Power to enter upon property for survey and valuation);

Section 12 (Extinction of private rights of way);

Section 13 (Benefits to be set off against compensation);

Section 15 (Land laid into streets to form part thereof).

The Act of 1928—

Section 19 (Power to make subsidiary works in connection with works);

Section 25 (Application of road materials excavated in construction of street works and river improvement).

The sections of this Act of which the marginal notes are—

“Incorporation of Lands Clauses Acts”;

“Period for compulsory purchase of lands”;

“Power to reinstate owners of property”;

“Limits of deviation”;

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Act, 1930.

A.D. 1930.

“ For protection of London Midland and Scottish Railway Company ”;

“ Charge on owners of land fronting bye-pass road towards cost of construction ”;

“ Power to plant bye-pass road with grass trees &c.”;

“ Building line.”

(3) After the said parts of the bye-pass road in the county shall have been constructed the said parts shall be maintained and repaired by and at the expense of the county council.

PART IV.

FINANCIAL PROVISIONS.

Power to Corporation to borrow.

21.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of that table and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (namely) :—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) For and in connection with the purchase of lands and easements.	£ 162,050	Sixty years from the date or dates of borrowing.
(b) For and in connection with the construction of street works authorised by this Act.	252,000	Thirty years from the date or dates of borrowing.
(c) For and in connection with the improvement of the river Sherbourne authorised by this Act.	4,600	Thirty years from the date or dates of borrowing.
(d) For and in connection with the laying out of the cemetery extension authorised by this Act.	6,500	Thirty years from the date or dates of borrowing.
(e) For the payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

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Act, 1930.

(2) (a) The Corporation may also borrow with the consent of the Minister of Health such further money as may be necessary for any of the purposes of this Act.

A.D. 1930.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent the money is borrowed.

(3) The periods set forth in the third column of the table contained in subsection (1) of this section and the period referred to in subsection (2) (b) of this section are in relation to this Act the prescribed periods referred to in section 112 (Periods for repayment of principal moneys) of the Act of 1900.

22. The following sections of the Act of 1900 the Act of 1907 the Act of 1911 and the Act of 1913 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Application
of provisions
of Acts of
1900 1907
1911 and
1913.

The Act of 1900—

Section 145 (Audit of accounts).

The Act of 1907—

Section 48 (Inquiries by Local Government Board) Provided that for the purposes of this Act subsection (2) of the said section 48 shall be read and have effect as if the words “five guineas” were substituted for the words “three guineas” therein.

The Act of 1911—

Section 47 (Expenses of execution of Act);

Section 54 (Consent of Corporation to be in writing).

The Act of 1913—

Section 21 (Power to re-borrow).

23.—(1) If the county council under the powers of the section of this Act of which the marginal note is “As to construction and maintenance of parts of by-pass road in the county” shall construct the parts in the county of Street Work No. 8 authorised by this Act the county council independently of any other borrowing power may borrow at interest from time to time for and in connection with the purposes mentioned in the first column of the following table the respective

Power to
county
council to
borrow.

[Ch. lxxxvi.] *Coventry Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — sums mentioned in the second column of the said table and the county council shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (namely):—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) For and in connection with the purchase of land.	£ 3,000	Sixty years from the date or dates of borrowing.
(b) For and in connection with the construction of the parts of Street Work No. 8 authorised by this Act in the county.	99,500	Thirty years from the date or dates of borrowing.

(2) The county council may also with the consent of the Minister of Health borrow such further money as may be necessary for either of the purposes mentioned in subsection (1) of this section or for the purposes of any of the other powers of this Act which they may exercise in connection with the construction of the said street work and shall pay off any money so borrowed within such period as may be prescribed by the said Minister.

(3) Any money borrowed under subsection (1) or subsection (2) of this section shall be charged indifferently on the county fund and any revenues of the county council.

(4) Any money to be borrowed under this Act by the county council shall be borrowed under and subject to the provisions (so far as applicable) of section 69 of the Local Government Act 1888 and the Local Government Act 1929 but the consent of the Minister of Health shall not be required to the borrowing or to the period for repayment of moneys borrowed under this section except as regards money borrowed under subsection (2) of this section.

(5) (a) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under subsection (2) of this section and the inspectors of the Ministry of Health shall for the purposes of any such

inquiry have all such powers as they may have for the purposes of inquiries directed by the said Minister under the Public Health Act 1875.

A.D. 1930.

(b) The county council shall pay to the said Minister any expenses incurred by the said Minister in relation to any inquiries referred to in this subsection including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the said Minister not exceeding five guineas a day for the services of such inspector.

24. The provisions of section 125 (Consolidated loans fund) of the Act of 1927 shall be read and have effect as if the following subsection were inserted therein :—

Amendment
of section
125 of Act
of 1927.

“(6) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve renewals depreciation contingent insurance superannuation capital or other similar fund (hereinafter referred to as “the lending fund”) and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions :—

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings.”

25.—(1) The Corporation may establish a fund to be called “the capital fund” to which they may pay any sums derived from the sale of corporate estate and any sums standing to the credit of any of the Corporation’s undertakings in any year (after allowing for the

Capital
fund.

[Ch. lxxxvi.] *Coventry Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — payment of all expenses properly chargeable to revenue and interest and sinking fund payments in that year in respect of each such undertaking) and the balance of the general rate fund in hand at the close of any year and such other sums (including interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) as the Corporation may by resolution direct not being moneys directed by law to be applied to any other purpose :

Provided that—

- (a) No sum shall be applied to the capital fund from an undertaking of the Corporation from which revenue is derived except when the reserve fund of the undertaking shall have reached and is at the prescribed maximum if any and in any case the sums so applied shall be limited in any one year to an amount not exceeding one per centum of the capital expenditure of the undertaking as shown in the accounts at the end of the preceding year together with the interest earned on the said reserve fund;
- (b) Any sum directed by the Corporation to be paid to the capital fund from the general rate fund (exclusive of any moneys derived from any such undertaking and of interest earned on or other income accruing to the capital fund) shall not exceed in any year the equivalent of a rate of two pence in the pound calculated according to the rules made pursuant to section 9 of the Rating and Valuation Act 1925; and
- (c) Nothing contained in this section shall be deemed to authorise the Corporation to apply or dispose of the surplus revenue of the electricity undertaking otherwise than in accordance with the provisions of section 43 of and the fifth schedule to the Electricity (Supply) Act 1926 and any contribution from the electricity undertaking to the capital fund shall be reckoned as a contribution in aid of the local rate for the purpose of the application of those provisions.

(2) The Corporation may apply the moneys in the capital fund in the exercise of any statutory borrowing power possessed by them or in providing money for payments into sinking funds in respect of loans raised under any such borrowing power (but not in making the annual payment required to be made thereto) or in the purchase or acquisition or taking on lease of any lands or buildings which they are authorised to purchase or acquire or take on lease under section 10 (Further powers for acquisition of land) of the Act of 1920.

A.D. 1930.
—

(3) (a) Pending the application of the capital fund to the purposes authorised in the foregoing subsection the moneys in the fund shall be either invested in statutory securities or used in the manner provided by section 130 (Use of moneys forming part of sinking and other funds) of the Act of 1927.

(b) Any income arising from the investment or use of the moneys in the capital fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of corporate estate which are applied from the capital fund under the provisions of this section shall be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation. Provided that where the advance is in the exercise of a statutory borrowing power such period shall not exceed the period prescribed for the repayment of moneys borrowed under that power.

PART V.

MISCELLANEOUS PROVISIONS.

26.—(1) Upon the acquisition of the lands described in paragraph (a) of subsection (2) of the section of this Act of which the marginal note is “ Power to take lands ” the Corporation may appropriate and use those lands for burial purposes with and as part of their existing cemetery at Windmill Road in the city.

Enlarge-
ment of
Windmill
Road
Cemetery.

(2) The said lands when appropriated for burial purposes shall form part of the said cemetery of the

[Ch. lxxxvi.] *Coventry Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. Corporation and shall be subject to the provisions of the Act of 1928 with regard to the cemeteries and burial grounds of the Corporation and to all the byelaws and regulations applicable to the said cemetery or to the Corporation in respect thereof.

Transfer of
Baginton
and Stone-
leigh town
planning
scheme to
Corporation.

27.—(1) The preparation of the Baginton and Stoneleigh town planning scheme of the Warwick Rural District Council in respect of which a preliminary statement of proposals for development submitted by that council was approved by the Minister of Health on the twentieth day of November nineteen hundred and twenty-five shall be transferred from that council to the Corporation and the Corporation shall complete the preparation of the said scheme.

(2) The said scheme shall before the approval of the Minister of Health is sought thereto be first submitted to and approved by the Warwick Rural District Council.

(3) If in order to form a continuation of equal width of a road in the city provision is made by the Corporation in the said scheme for any road in the Warwick Rural District to be widened beyond the width required by the byelaws in force in that district relating to new streets and buildings the additional cost of the construction of such road caused by such increased widening including the acquisition of the reservation of or entry on land for that purpose shall (subject to any agreement between the Corporation and the Warwick Rural District Council or the Corporation and the county council) be paid by the Corporation.

(4) The said scheme when completed shall (subject to any agreement between the Corporation the Warwick Rural District Council and the county council) provide that either the county council or the rural district council shall be the responsible authority under the Town Planning Act 1925 for the enforcement of the said scheme.

(5) The Warwick Rural District Council shall be entitled to appoint two representatives to be members of and to attend any meetings of the joint town planning advisory committee of interested local authorities which the Corporation have set up in connection with the preparation of the Coventry (No. 1) town planning

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scheme the Warwick Rural (Baginton) town planning scheme the Coventry (Stivichall and Stoneleigh added areas) town planning scheme and the Coventry (Tile Hill) town planning scheme. A.D. 1930.
 —

28. Section 21 (Rates for passengers) of the Act of 1920 shall be amended by omitting the following words at the end of subsection (1) of that section (namely):— Amendment of section 21 of Act of 1920.

“ but the Corporation may charge for any less
 “ distance than two miles and not being less than
 “ half a mile a sum not exceeding two pence ”

and the said section shall be read and have effect accordingly.

29.—(1) The Corporation may if and when they think it necessary or expedient so to do for the purpose of enforcing their powers under section 81 of the Act of 1900 as amended by section 89 of the Act of 1920 enter upon any premises and lay a combined drain therein and may require the owner of such premises to permit the retention of such drain upon such premises and to permit persons wholly or partly liable for the maintenance and repair of such drain to enter upon such premises by themselves or their agents for the purpose of executing any work of maintenance or repair. Power to lay combined drain.

(2) Sections 53 and 55 of the Act of 1911 shall with the necessary modifications extend and apply to the exercise of the powers of this section as if those sections were re-enacted in this Act.

30.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this Act referred to as “ water fittings ”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

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Act, 1930.

A.D. 1930.

—

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation from the person on whose credit the water is supplied as the water rates in respect of the premises are recoverable.

(4) Such byelaws shall not apply to any water fittings used on the premises of any railway company other than premises to which the Corporation are bound under the Waterworks Clauses Act 1847 to afford a constant supply.

(5) Section 18 (Regulations for preventing waste of water) and section 19 (Where regulations confirmed Corporation bound to supply water under constant pressure in parts of district specified in the regulations) of the Coventry Water Act 1889 are hereby repealed.

Byelaws as
to water
fittings.

31.—(1) For preventing waste misuse undue consumption or contamination of the water of the Corporation the Corporation may make byelaws for the testing and stamping of fittings :

Provided that any such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared to afford a constant supply of water :

Provided further that such byelaws shall not apply to any pipes or fittings used on any premises which form part of the railway of a railway company.

(2) Any person who shall forge or counterfeit any stamp or mark used by the Corporation or by authority of the Corporation for any of the purposes of this section or any byelaw made in pursuance thereof or who shall use or supply anything marked with any such stamp or mark knowing the same to be forged or counterfeited shall for every such offence be liable to a penalty not exceeding twenty pounds.

Byelaws for
regulation
of markets.

32. The byelaws of the Corporation for the time being for the regulation of their markets made under

the Coventry Market House Act 1863 shall extend to any markets for the time being of the Corporation. A.D. 1930. —

33. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act. General provisions as to byelaws.

34.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the city and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purposes of the gift are purposes for which the Corporation are empowered to expend money raised from the general rate they may subject to any condition or restriction attaching to such power expend money so raised in the execution of such works in relation to the subject-matter of the gift. Gifts and bequests.

(2) This section shall not extend to property relating to affairs of the church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the treasurer of the city and shall be made up and audited as part of the general accounts of the Corporation.

35. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

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Act, 1930.

A.D. 1930.

The SCHEDULE referred to in the
foregoing Act.

LIST OF PROPERTIES OF WHICH PART ONLY
MAY BE TAKEN.

City or Parish	Numbers on Deposited Plans.
City and Parish of Coventry	- 26B 31 109 116 188 194.
Parish of Allesley	- - 124 125.
„ „ Stoneleigh	- - 211.
„ „ Baginton	- - 261.
„ „ Willenhall	- - 265 267 268.

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